



CHAPTER cxci.

An Act for conferring further powers on the London A.D. 1903.
United Tramways (1901) Limited for widening and
altering roads and acquiring lands in the counties of
Middlesex Surrey and London and for other purposes.

[11th August 1903.]

WHEREAS the London United Tramways (1901) Limited (in this Act called “the Company”) under and by virtue of the London United Tramways Acts 1873 to 1902 and the London United Tramways Limited (Light Railway Extensions Order 1896 are the owners of or are authorised to construct tramways and light railways and execute other works in the counties of Middlesex Surrey and London :

And whereas it is expedient that the Company should be empowered in connexion with their existing and authorised tramways and light railways to widen and alter the roads in this Act mentioned in that behalf and that the other powers in this Act mentioned or referred to should be conferred upon the Company :

And whereas plans and sections showing the lines and levels of the works by this Act authorised such plans showing the lands to be taken compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands have been deposited with the clerks of the peace for the counties of Middlesex Surrey and London respectively and are in this Act referred to respectively as the deposited plans sections and book of reference :

And whereas it is expedient that the powers conferred by the London United Tramways Act 1900 (in this Act called “the Act of 1900”) for the compulsory purchase of lands for the purpose of certain widenings by that Act authorised should be extended :

[*Price 1s. 6d.*]

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A.D. 1903. — And whereas the objects aforesaid cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title. 1. This Act may be cited for all purposes as the London United Tramways Act 1903 and the London United Tramways Acts 1873 to 1902 and this Act may be referred to as the London United Tramways Acts 1873 to 1903.

Incorporation of general Acts. 2. The Lands Clauses Acts are except where expressly varied by this Act incorporated with and form part of this Act.

Interpretation. 3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts incorporated with this Act have the same respective meanings.

Correction of errors &c. in deposited plans and book of reference. 4. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county in which such lands are situate for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and a duplicate thereof shall also be deposited with the town clerk of the city or borough or the clerk to the district council of the urban or rural district in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

Power to widen streets &c. 5. Subject to the provisions of this Act the Company may in the lines and according to the levels shown on the deposited plans and sections relating thereto make the widenings of streets or roads

herein-after described or mentioned and may enter upon take and use such of the lands delineated on the said plans and described in the deposited book of reference relating thereto as may be required for those purposes (that is to say) :—

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County of Middlesex :

In the parish and urban district of Twickenham—

- (A) On the east side of London Road between points respectively 83 yards or thereabouts north and 38 yards or thereabouts south of the centre of Cole Road ;
- (B) On the south-east side of Hampton Road between the north-east corner of Walpole Road and a point 119 yards or thereabouts measured in a northerly direction therefrom ;
- (C) On the west side of Hampton Road between the south-east corner of Fifth Cross Road and the north-east corner of Sixth Cross Road :

In the parish and urban district of Teddington—

- (A) On the west side of Wellington Road between a point 33 yards or thereabouts south of a point opposite the centre of Fulwell Road and the north-east corner of the Duke of Wellington public house ;
- (B) On the west side of Kingston Road between points respectively 67 yards or thereabouts south and 83 yards or thereabouts north of the north-east corner of the premises known as Ferncroft ;
- (C) On the east side of Kingston Road between the north-west corner of Atbara Road and a point 248 yards or thereabouts measured in a northerly direction therefrom ;
- (D) On the east side of Kingston Road between points respectively 36 yards or thereabouts south and 60 yards or thereabouts north of a point in line with the south side of the premises known as Clonbrook ;
- (E) On the north side of High Street Teddington between a point opposite the north-east corner of Langham Road and a point 22 yards or thereabouts west of the western corner of the Teddington High Street post office ;
- (F) On the north side of High Street Teddington between points respectively 122 yards or thereabouts east and 48 yards or thereabouts west of the centre of Cambridge Road ;

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- (G) On the south side of High Street Teddington between the north-east corner of Cedar Road and a point 19 yards or thereabouts east of the north-east corner of Field Lane ;
- (H) On the east side of Park Road between a point opposite the junction of Park Road and Wolsey Road and a point 72 yards or thereabouts measured in a northerly direction therefrom ;
- (I) On the north side of Broad Street between the south-west corner of Church Road and a point 97 yards or thereabouts west of the south-west corner of Elfin Grove ;
- (J) On the west side of Stanley Road between a point 100 yards or thereabouts north-west of the junction of Stanley Road with Hampton Road and the north-eastern corner of Gloucester Road ;
- (K) On the west side of Stanley Road between points respectively 69 yards or thereabouts south and 214 yards or thereabouts north of the centre of Fulwell Road :

In the parish and urban district of Hampton—

- (A) On the west side of High Street Hampton between the south-east corner of Burton Lane and a point 10 yards or thereabouts south of the Duke of Clarence public house ;
- (B) On the east side of High Street Hampton between the south-west corner of the Star public house and a point in line with the north-east side of the Hampton Hill Congregational Church ;
- (C) On the east side of High Street Hampton between the northern boundary of the grounds of Longford Lodge and the southern boundary of the grounds of Grove House ;
- (D) On the east side of High Street Hampton between the northern boundary of the premises of the White Hart public house and a point 21 yards or thereabouts measured in a northerly direction from that boundary ;
- (E) On the east side of Church Street Hampton between points respectively 71 yards and 119 yards or thereabouts south of the southern boundary of the premises of the White Hart public house :

In the parish of Heston and urban district of Heston and Isleworth— A.D. 1903.

- (A) On the south-east side of Hanworth Road between the north-east corner of Chapel Road and a point 60 yards or thereabouts measured in a north-easterly direction therefrom ;
- (B) On the north side of Hanworth Road between points respectively 16 yards and 60 yards or thereabouts west of the north-east side of the Tankerville Arms public house :

In the parish and urban district of Sunbury—

On the north side of Hanworth Road between points respectively 28 yards or thereabouts south-west and 630 yards or thereabouts north-east of a point opposite the north-west corner of the Running Horse public house :

In the parish of Hanworth and rural district of Staines—

- (A) On the north-west side of Staines Road between points respectively 70 yards and 233 yards or thereabouts south-west of the centre of the bridge carrying the road over the aqueduct of the East London Waterworks ;
- (B) On the north side of Staines Road between the south-west corner of School Road and a point 218 yards or thereabouts measured in a westerly direction therefrom ;
- (C) On the south side of Staines Road between points respectively 41 yards and 21 yards or thereabouts west of the north-east corner of the Brown Bear Inn ;
- (D) On the south side of Staines Road between points respectively 17 yards and 43 yards or thereabouts east of the north-east corner of the Brown Bear Inn.

County of Surrey :

In the parish of East Molesey and urban district of East and West Molesey—

- (A) On the west side of Bridge Road between points respectively 80 yards and 97 yards or thereabouts south of the north-east corner of the Thames Hotel ;
- (B) On the east side of Bridge Road between points respectively 12 yards or thereabouts north and 19 yards or thereabouts south of the junction of Wolsey Road with Bridge Road ;

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- (c) On the east side of Bridge Road between points respectively 83 yards and 103 yards or thereabouts south of the south-east corner of Arnison Road ;
- (d) On the west side of Bridge Road between points respectively 20 yards and 73 yards or thereabouts south of the north-west corner of the King's Arms public house ;
- (E) On the west side of Ember Lane between points respectively 30 yards or thereabouts north and 184 yards or thereabouts south of the centre of the bridge carrying the road over the River Mole ;
- (F) On the east side of Ember Lane between points respectively 67 yards and 260 yards or thereabouts south of the centre of the bridge carrying the road over the River Ember ;
- (G) On the west side of Ember Lane between points respectively 170 yards and 254 yards or thereabouts south of the centre of the bridge carrying the road over the River Ember :

In the parish of New Malden and urban district of The Maldens and Coombe—

On the north side of Kingston Road between the junction of Kingston Road with Malden Road and a point 80 yards or thereabouts measured in a westerly direction from that junction :

In the parish of Mortlake and urban district of Barnes—

- (A) On the south side of Lower Richmond Road between points respectively 80 yards and 533 yards or thereabouts west of a point opposite the south-east corner of Kew Lane ;
- (B) On the south side of Lower Richmond Road between a point opposite the south-east corner of Kew Lane and a point 80 yards or thereabouts measured in a westerly direction therefrom ;
- (c) On the south side of Lower Richmond Road Mortlake between a point opposite the south-east corner of Kew Lane and a point 47 yards or thereabouts east of a point opposite the centre of Williams Lane ;
- (D) On the south side of High Street Mortlake between the north-east corner of Sheen Lane and a point 70 yards or thereabouts measured in an easterly direction from that corner ;

(E) On the south side of High Street Mortlake between the north-east corner of Tinderbox Alley and the north-west corner of First Avenue ;

(F) On the north side of High Street Mortlake between points respectively 2 yards and 48 yards or thereabouts measured in an easterly direction from a point opposite the north-east corner of First Avenue :

In the parish and urban district of Wimbledon—

On the north side of High Street Merton between the south-east corner of Hamilton Road and the south-west corner of Nelson Road :

In the parish of Merton and rural district of Croydon—

(A) On the west side of West Barnes Lane between points respectively 60 yards or thereabouts south and 70 yards or thereabouts north of the centre of the bridge carrying the London and South Western Railway over West Barnes Lane ;

(B) On the east side of West Barnes Lane between points respectively 40 yards or thereabouts south and 45 yards or thereabouts north of the centre of the bridge carrying the London and South Western Railway over West Barnes Lane ;

(C) On the south side of High Street Merton between the north-east corner of the Horse and Groom public house and the north-west corner of Pincott Road :

In the parish of Mitcham and rural district of Croydon—

(A) On the south-east side of High Street Colliers Wood between the bridge carrying the road over the River Wandle and a point 83 yards or thereabouts measured in an easterly direction therefrom ;

(B) On the north-west side of High Street Colliers Wood between points respectively 158 yards or thereabouts south-west and 147 yards or thereabouts north-east of the centre of Byegrove Road ;

(C) On the south-east side of High Street Colliers Wood between the north-east corner of Church Road and the south-west corner of Cavendish Road.

County of London :

In the parish and metropolitan borough of Hammersmith—

(A) On the west side of Paddenswick Road between the northern boundary of Saint Peter's School and a point 133 yards or thereabouts measured in a southerly direction from that boundary ;

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- (B) On the west side of Paddenswick Road between the south-east corner of Shaftesbury Road and a point 14 yards or thereabouts measured in a southerly direction therefrom ;
- (C) On the west side of Paddenswick Road between the north-east corner of Shaftesbury Road and a point 103 yards or thereabouts measured in a northerly direction therefrom ;
- (D) On the east side of Paddenswick Road between points respectively 37 yards and 144 yards or thereabouts north of the north - west corner of Wellesley Avenue ;
- (E) On the east side of Askew Road between points respectively 126 yards and 23 yards or thereabouts south of the south-west corner of Westville Road ;
- (F) On the west side of Askew Road between the north-east corner of Cobbold Road and the north-west corner of Becklow Road ;
- (G) On the east side of Askew Road between the north - west corner of Clifton Road and a point 83 yards or thereabouts measured in a northerly direction therefrom.

Power to
acquire
additional
lands.

6. Subject to the provisions of this Act and in addition to any other lands which they are by this Act authorised to acquire the Company may enter upon take hold and use for the purposes of street widenings all or any of the lands houses and premises herein-after described and delineated on the deposited plans and described in the deposited book of reference relating thereto and the Company may sell or may use for the general purposes of their undertaking (other than for a station for generating electrical power) any portions of any lands acquired under this section which may not be required for the purposes of street widenings.

The lands and houses herein-before referred to are as follows :—

County of Middlesex :

Certain lands and buildings in the parish and urban district of Teddington on the north side of High Street from a point opposite the north-east corner of Langham Road to a point 22 yards or thereabouts west of the western corner of Teddington High Street post office ;

Certain lands and buildings in the parish and urban district of Hampton on the east side of High Street Hampton between the south-west corner of the Star

public house and a point in line with the north-east side of Hampton Hill Congregational Church. A.D. 1903.

County of Surrey :

Certain lands and buildings in the parish of Mortlake and urban district of Barnes on the south side of Lower Richmond Road between a point opposite the south-eastern corner of Kew Lane and a point 80 yards or thereabouts west thereof ;

Certain lands and buildings in the parish of Mortlake and urban district of Barnes on the south side of High Street between the north-east corner of Sheen Lane and a point 70 yards or thereabouts measured in an easterly direction from that corner ;

Certain lands and buildings in the parish of Mortlake and urban district of Barnes on the north side of High Street between points respectively 2 yards and 48 yards east of a point opposite the north-east corner of First Avenue.

County of London :

Certain lands and buildings in the parish and metropolitan borough of Hammersmith on the west side of Paddenswick Road between points respectively 44 yards and 111 yards or thereabouts north of the north-east corner of Albion Gardens ;

Certain lands and buildings in the parish and metropolitan borough of Hammersmith on the east side of Askew Road between points respectively 67 yards and 126 yards or thereabouts south of the south-west corner of Westville Road.

7.—(1) The Company shall deliver plans drawn to a scale of not less than forty-four feet to an inch together with drawings and specifications of the works comprised in or connected with any street and road widenings and improvements to be executed under the provisions of this Act to the surveyor of the council of the district in which such works are respectively situate and such works shall not be proceeded with until such plans drawings and specifications have been approved by the said surveyor in writing under his hand but such approval shall not be unreasonably withheld and notice of his approval or of his disapproval and the grounds thereof shall be given to the Company within a reasonable time not exceeding twenty-one days after receipt of such plans

Provisions
to be
observed in
executing
street works.

A.D. 1903. — drawings and specifications or within seven days after the receipt of any amended plans drawings or specifications and in default of notice within the time aforesaid the same shall be deemed to have been approved by him.

(2) The Company shall carry out and complete all the said works according to the plans drawings and specifications approved by the said surveyor in manner aforesaid or settled by arbitration as hereinafter provided and under his superintendence and to his reasonable satisfaction.

(3) If in the execution of the street widenings and works by this Act authorised any manhole surface or foul water sewer or pipe is interfered with which in the opinion of the said surveyor it would be dangerous or inconvenient to retain in the same position the Company shall at their own expense take up such manhole surface or foul water sewer or pipe and relay or replace the same to the reasonable satisfaction of the said surveyor in some other part of the road.

(4) The Company shall pave to the reasonable satisfaction of the said surveyor the new portions of any roads or footpaths widened or interfered with under the powers of this Act with similar materials to those with which the existing portions of the roads or footpaths so widened or interfered with are paved.

(5) The widenings and alterations of streets and roads by this Act authorised shall be maintained in repair by and at the cost of the Company for six months after their respective completion and from and after the expiration of such respective periods the widenings and alterations shall vest in and be maintained in repair as public highways subject as aforesaid by and at the expense of the authority or persons by whom or at whose expense the adjacent roads or streets or portions of roads or streets are repairable.

(6) If any dispute or difference shall arise between the said surveyor and the Company concerning any matter or thing in this section contained or referred to or as to the reasonableness of any requirements of the said surveyor then and in every such case the dispute or difference shall be referred to an arbitrator to be agreed on between the parties or failing agreement to be appointed by the Board of Trade on the application of either party and the arbitration shall be under and subject to the provisions of the Arbitration Act 1889.

For protection of Lambeth and Southwark

8. For the protection of the Company of Proprietors of Lambeth Waterworks and the Southwark and Vauxhall Water Company respectively (each of whom is in this section referred to

as “the water company”) the following provisions shall apply and have effect :—

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and Vauxhall
Water Com-
panies.

- (A) Whenever the construction of the works by this Act authorised necessitates the removal deviation alteration or support of any pipe or main of the water company the work of removal deviation alteration or support so necessitated shall if they so desire be done by the water company or their authorised contractors under the superintendence of the water company or an engineer to be nominated by them at such time of the year as the water company may reasonably select but so as not to unduly delay the construction of the works by this Act authorised and the reasonable expenses of the water company in connexion therewith shall be paid by the Company :
- (B) The foregoing provisions of this section shall be in addition to and not in substitution for or derogation from any other powers rights or privileges whether statutory or otherwise of the water company :
- (c) Any difference which may arise between the water company and the Company touching any of the matters referred to in this section shall be decided by a single arbitrator to be agreed on between the parties or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the arbitration shall be under and subject to the provisions of the Arbitration Act 1889.

9. For the protection of the Governor and Company of Chelsea Waterworks (in this section referred to as “the water company”) the following provisions shall apply and have effect :—

For pro-
tection of
Chelsea
Water Com-
pany.

- (A) Whenever the construction of the works by this Act authorised necessitates the removal deviation alteration or support of any pipe or main of the water company the work of removal deviation alteration or support so necessitated shall if they so desire be done by the water company or their authorised contractors under the superintendence of the water company or an engineer to be nominated by them at such time of the year as the water company may reasonably select but so as not to unduly delay the construction of the works by this Act authorised and the reasonable expenses of the water company in connexion therewith shall be paid by the Company :

A.D. 1903.

- (B) In carrying out the widening of Bridge Road and the bridge over the River Ember by this Act authorised the Company shall not at the western side of the Ember Bridge between the north and south ends of that bridge take any land or construct any works below the highest water-level of the River Ember within a distance of 7 feet from the existing main of the water company nor shall they above such level construct any projecting part of such bridge within a horizontal distance of 4 feet from the said main and no retaining wall shall be constructed on the northern and southern approaches to such bridge but the widened portion of the road where it crosses over the said main shall be upheld by embankments of earthwork :
- (c) The foregoing provisions of this section shall be in addition to and not in substitution for or derogation from any other powers rights or privileges whether statutory or otherwise of the water company :
- (d) Any difference which may arise between the water company and the Company touching any of the matters referred to in this section shall be decided by a single arbitrator to be agreed on between the parties or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the arbitration shall be under and subject to the provisions of the Arbitration Act 1889.

Restriction
on taking
houses of
labouring
class.

10. The Company shall not purchase acquire or appropriate under any of the powers of this Act or for any of the purposes of this Act twenty or more houses or sites of houses in the administrative county of London which at any time within five years before the passing of this Act have been or shall hereafter be occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers.

The Company shall not under the powers of this Act or under the powers of any former Act extended by this Act purchase or acquire (elsewhere than in the administrative county of London) in any borough or other urban district and elsewhere than in any borough or urban district any parish ten or more houses which on the fifteenth day of December next before the passing of this Act or of the former Act by which the purchase or acquisition was originally authorised were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or

more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. A.D. 1903.

If the Company acquire or appropriate any house or site for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house or site which penalty shall be recoverable by the Secretary of State or the Local Government Board (as the case may be) by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "labouring class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

11. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege required for the purposes of this Act (not being an easement right or privilege of water in which any persons other than parties to the agreement have an interest) in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to owners to grant easements &c.

12. And whereas in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :—

Owners may be required to sell parts only of certain properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":

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- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed

from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice : A.D. 1903.

- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

13. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

14. The powers granted by the London United Tramways Act 1900 for the compulsory purchase of lands for the purpose of the street widenings in connexion with Tramway No. 2 by that Act authorised are hereby extended and may be exercised by the Company during a period of two years from the passing of this Act and on the expiration of that period those powers shall cease. Extension of time for purchase of certain lands.

15. The court or person to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Company award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Company by the claimant giving sufficient particulars and in sufficient time to enable the Company to make a proper offer and if they or he shall be of opinion that no such statement giving sufficient particulars shall have been delivered Costs of arbitration &c. in certain cases.

A.D. 1903. — one half of the costs of the arbitration or as the case may be one half of the costs of the proceedings before the sheriff (including the costs of summoning empanelling and returning the jury and of taking the inquiry and in recording the verdict and judgment therein) shall be defrayed by the person with whom the Company shall have such question and the remaining half shall be defrayed by the Company anything in the Lands Clauses Consolidation Act 1845 to the contrary notwithstanding :

Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Company to amend the statement in writing of the claim delivered by him to the Company in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Company if they object to the amendment and such amendment shall be subject to such terms enabling the Company to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case :

Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice of the effect of this section.

Compensation in case of recently altered buildings.

16. In settling any question of disputed purchase money or compensation under this Act the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the thirtieth day of November one thousand nine hundred and two if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

For protection of Ravenscourt Park.

17. The London County Council shall as soon as practicable after the passing of this Act give to the Company free of cost possession of so much of the lands numbered on the deposited plans 16 17 and 18 in the parish of Hammersmith as are required for widening Paddenswick Road in accordance with the provisions of this Act and the Company shall so soon as they have obtained such possession erect at their own expense and to the reasonable satisfaction of the London County Council along the whole length

of the said lands and to the line shown on the said plans and thereon marked "Intended line of frontage" a dwarf wall and railings similar in all respects to the dwarf wall and railings now enclosing the said park between the lodge entrance thereto in Paddenswick Road and the said lands numbered 16 17 and 18 on the said deposited plans which said lands and dwarf wall and railings when erected shall vest in and be the property of the said council.

A.D. 1903.

18. The provisions of the London Building Act 1894 the London Building Act 1894 (Amendment) Act 1898 and any Act amending the same shall except so far as the same may be expressly varied by this Act apply to the construction or execution by the Company of any building structure or works on any lands in the administrative county of London.

Application of London Building Acts.

19. Notwithstanding anything contained in this Act or shown on the deposited plans it shall not be lawful for the Company without the consent of the London County Council to erect or maintain any building or structure beyond the general line of buildings in any street part of a street place or row of houses in the administrative county of London.

Buildings not to be brought beyond general line.

20. The Company shall not where any house or building in the administrative county of London shall have been wholly or in part demolished by them leave any adjoining structures or any portion of a partly demolished structure in an unsightly condition for a longer period than is reasonably necessary.

Walls of buildings to be made good.

21. The Company shall not affix or exhibit or permit to be affixed or exhibited upon any part of the works authorised by this Act or upon any building or hoarding erected for the purposes of such works and whether during or after the construction of the works within view of any public street in the county of London any placards or advertisements except placards or advertisements relating to the business of the Company except such as shall have been approved in writing by the clerk or other officer of the London County Council and by the clerk to the council of the metropolitan borough in which such part of the works is situate and if any such placard or advertisement be affixed or exhibited without such approval either of the said councils and their authorised officers may remove the same.

Exhibition of placards in county of London.

22. And whereas by the London United Tramways Act 1901 (in this Act referred to as "the Act of 1901") the Company were authorised subject to the provisions of that Act to construct

Power to county councils to borrow

A.D. 1903. — money for bridge work. tramways on the bridges over the River Thames known as Hampton Court Bridge and Kingston Bridge and section 34 of the Act of 1901 contained provisions with regard to the payment of the cost of the reconstruction or widening of the said bridges by the bridge authority (as in that section defined) and it is expedient that the county councils of Surrey and Middlesex be authorised to borrow money for the purpose of such reconstruction or widening Therefore the following provisions shall have effect (that is to say) :—

- (1) The said county councils may severally borrow and expend on capital account for the purposes of the reconstruction or widening of the said bridges or either of them such sums of money as may be sanctioned by the Local Government Board :
- (2) In calculating the amounts which the said councils may respectively borrow under the Local Government Act 1888 the amounts borrowed under this Act shall not be reckoned :
- (3) The said councils shall severally make provision for the repayment of any money borrowed on capital account under this section within such period not exceeding sixty years from the date of the borrowing of such money as the Local Government Board may sanction :
- (4) All sums of money which the respective said councils may from time to time require for such repayment shall subject to the provisions of this Act be defrayed by them respectively as payments for general county purposes within the meaning of and as authorised by the Local Government Act 1888 :
- (5) The provisions with respect to borrowing repayment and re-borrowing of moneys by a county council contained in section 69 of the Local Government Act 1888 shall so far as applicable extend and apply to the borrowing repayment and re-borrowing of moneys by either of the said councils under this section.

Annual
return to
Local
Government
Board.

23.—(1) The clerk of each of the said councils shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund by either of the said councils in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other

time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration showing for the year next preceeding the making of such return or for such other period as the Local Government Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return such clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that either of the said councils have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default shall have been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

24. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully

Copy of Act
to be regis-
tered.

A.D. 1903. — authorises such default shall incur a like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Provision as
to general
Tramway
Acts.

25. Nothing in this Act contained shall exempt the Company or their tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised to be taken by the Company.

Saving rights
of Crown.

26. Nothing contained in this Act shall authorise the Company to take use or in any manner interfere with any lands or hereditaments or any rights of whatsoever description belonging to the King's most Excellent Majesty in right of His Crown and under the management of the Commissioners of Woods or the Commissioners of Works without the consent in writing of the Commissioners of Woods or the Commissioners of Works as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent such Commissioners are hereby authorised to give) neither shall anything in this Act contained extend to take away prejudice diminish or alter any of the estates rights privileges powers or authorities vested in or enjoyed or exerciseable by the King's Majesty.

Costs of Act.

27. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE.

A.D. 1903.

PROPERTIES OF WHICH PARTS ONLY ARE REQUIRED TO BE TAKEN.

Borough or District.	Numbers on deposited Plans.
County of Middlesex—	
Urban District of Twickenham	1 2 3 5 6 7 8 10 12 13 14 15 16 17 18 20 21 22 23 24 26 27 28 29 30 31 33 34 35 39 40 41 42
Urban District of Teddington	1 2 3 4 6 7 8 9 11 12 13 14 15 16 17 18 19 20 21 23 24 25 26 27 28 29 30 31 32 33 34 35 38 39 40 41 42 43 44 45 46 47 48 50 51 52 53 55 56 57 58 59 60 61 62 63 64 76 77 78 79 80 81 82 83 84 85 86 87 88 91 92 94 95 96 97 98 99 100 101 102 103 105 106 107 108 109 110 111 112 113 114 115 116 117 118 119 120 121 122 123 124 125 126 127 128 129 130
Urban District of Hampton -	1 2 3 4 5 6 7 8 9 11 12 13 14 15 16 17 18 19 20 22 23 24 25 26 27 28 29 30 31 32 35 37 38 39 40 41 42 50 51 54 55 56 57 58 59
Urban District of Heston and Isleworth	9 10 11 12 13
Urban District of Sunbury -	1 2 3 4 5
Rural District of Staines -	1 2 4 5 6
County of Surrey—	
Urban District of East and West Molesey	1 2 3 4 5 6 7 8 9 10 11 12 13 14 15 19 22 24 25 27 28
Urban District of The Maldens and Coombe	1 2 4
Urban District of Barnes -	1 2 6 7 8 9 10 11 23 24 25 26 27 28
Rural District of Croydon -	1 4 5 6 7 8 9 10 11 12 14 15 16 17 18 19 20 21 22 23 24 25 27 28 29 30 31 32 33 34 35 36 38 39 40 42 43 44 45 46 47 48 50 51 52 53 54 55 56 57 58 59 60 61 62 63 64 65 66 67 68 69 70 71 73 74 75 76 77 78 79 80 81 82 83 84 85 87 88
Urban District of Wimbledon	1 2 3 4 6 7 8 9 10 11 12

A.D. 1903.	Borough or District.	Numbers on deposited Plans.
	County of London—	
	Metropolitan Borough of	14 15 16 17 18 19 20 21 22 23 24 25 26 27
	Hammersmith	28 29 30 31 32 33 34 36 37 38 39 40 41
		42 43 44 45 46 47 48 49 50 51 52 53 54
		55 56 57

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